DATED 11 July 2019

THE COUNCIL OF THE CITY OF SALFORD

– and –

FOREGATE LIMITED

AGREEMENT

pursuant to section 106 of the Town and Country Planning Act 1990 (as amended) relating to Land at the former Lyceum Theatre, Church Street, Eccles, Salford, M30 0LZ

City Solicitor
Salford City Council
P O Box 532
Town Hall
Albert Square
Manchester M60 2LA
FYM/OUT1105/608

THIS AGREEMENT is made the 11th day of July 2019

BETWEEN:

(1) **THE COUNCIL OF THE CITY OF SALFORD** of Salford Civic Centre, Chorley Road, Swinton, Manchester M27 5DA (the **"Council"**), and

(2) **FOREGATE LIMITED** (incorporated in The Isle of Man with company number 120861C) whose registered office is at 14 Albert Street, Douglas, IM1 2QA, Isle of Man (the **"Owner"**)

BACKGROUND

A The Council is the local planning authority for the purposes of the Act in relation to the Site and is the authority by whom the obligations hereby created are enforceable The Development will be carried out on the Site The Site is situated within the Administrative Boundaries of Salford and this planning obligation is enforceable by the Council

B The Owner is the freehold owner of the Site registered at the Land Registry with Title Absolute under Title Numbers GM519675, GM347596, GM203196 and GM179064 together with but subject to all matters contained or referred to in the Title Registers thereunder

C The Application was submitted to the Council for planning permission to carry out the Development in the manner set out in the plans, specifications and particulars forming part of the Application

D The Council as local planning authority is satisfied that the Development is such as may be approved by the Council under the Act and is minded to grant planning permission for the Development in accordance with the Application but having considered the SPD and the Regulations is desirous of the Owner entering into this Agreement without which planning permission would not be granted

E The SPD sets out a requirement to make Contributions towards meeting expenditure relating to open space provision and public realm and the calculation of the Contributions is based upon the total of the contribution amounts in respect of each of these areas of expenditure The Council has determined that the Development in order to comply with the SPD will support the payment of £350,969 00 (three hundred and fifty thousand nine hundred and sixty nine pounds) as the **Maximum Contribution**.

F The Owner has agreed to enter into this Agreement in support of the Application so as to create planning obligations in favour of the Council pursuant to section 106 of the Act and to be bound by and observe and perform the covenants hereinafter contained

G The Owner has stated that there are viability issues affecting the development of the Site and has submitted to the Council documentation in support of this contention The Council has accepted that at the date of this Agreement there will be no initial contribution sought from the Owner without which the implementation of the Development is not viable

H The planning purpose of this Agreement is to improve the amenity of land in the locality of the Site with benefit for the occupiers of the Development and to mitigate the adverse impacts of the

Development in accordance with the development plan for the area and other material considerations The Council is satisfied that the obligations in this Agreement are;

(a) necessary to make the Development acceptable in planning terms (including where appropriate, obligations necessary to mitigate the adverse impacts of the Development in accordance with the development plan for the area and other material considerations),

(b) directly related to the Development, and

(c) fairly and reasonably related in scale and kind to the Development

AGREED TERMS

DEFINITIONS AND INTERPRETATION

1 1 The definitions and rules of interpretation set out in this Clause apply to this Agreement **"Act"** the Town and Country Planning Act 1990 as amended by the Planning and Compensation Act 1991 and the Planning and Compulsory Purchase Act 2004 and the Planning Act 2008,

"Administrative Boundaries of Salford" all the wards that together comprise the city of Salford

"Agreement" this agreement;

"Application" the application to which the Council gave the reference 16/68464/FUL for planning permission for the part demolition of existing building and construction of an eight–storey side and rear addition comprising 82 apartments, commercial unit (Use Classes A1, A2, B1 D1 and D2) measuring 178 square metres and car and bicycle parking;

"Calculation Date" shall be the date of Commencement of Development,

"**Chartered Surveyor**" a professional expert who is a chartered member of the Royal Institution of Chartered Surveyors with a minimum of ten (10) years post-qualification experience,

"Commencement of Development" the date upon which the Development shall begin by the carrying out of a material operation in accordance with the provisions of section 56(4) of the Act PROVIDED THAT any works of or associated with site clearance, remediation works, environmental or archaeological investigations, site and soil surveys, erections of contractors work compound, erection of site office, erection of fencing to site boundaries, marking of site boundaries and laying out of access roads and services shall for the purposes of the agreement be deemed not to be material operations and **"Commence"**, **"Commencement"** and **"Commenced"** shall be construed accordingly. Commencement will be deemed to have taken place whether it takes place on the Site or on the land adjacent to the Site,

"Completion of Construction" the date upon which a valid certificate of completion shall have been issued in respect of the Dwellings for the purposes of the Building Act 1984 and the Building Regulations 2010 or any amendment or replacement of the same and **"Completed"** and "Completion" shall be construed accordingly,

"Contributions" the Open Space Contribution and Public Realm Contribution together;

"Development" the development undertaken on the Site pursuant to the Planning Permission as specified in the Application "Developed" shall be construed accordingly;

"Director" the Council's Strategic Director Place or such other officer of the Council as may from time to time be nominated in writing to act in place of the Council's Strategic Director Place,

"Dwelling" a unit of accommodation to be constructed on the Site as part of the Development pursuant to the Planning Permission and any Reserved Matters Approvals and **"Dwellings"** shall be construed accordingly

"Expert" a professional expert in town planning, who is a Chartered Member of the Royal Town Planning Institute with a minimum of ten (10) years post-qualification experience

"Forward Funding Arrangement" a commitment to provide funding to assist the development of the project going forward with the sole aim of facilitating either a single sale of the whole or part of the Development, but not necessarily a commitment to purchase the Development, or the retention of the whole or part of the Development by the Developer on Completion of Construction as a Private Rental Sector (PRS) Investment For the avoidance of doubt funding not provided for the purposes outlined in the previous sentence of this definition but provided, for example, for the purpose of covering the construction costs of any dwelling that is to be sold on the Open Market to an individual purchaser will not be classed as a Forward Funding Arrangement

"Forward Sale" the committed sale and purchase of the whole or part of the completed Development on agreed terms at a future date as evidenced by binding legal documents which are unconditional as to the sale of the whole or part of the completed Development and the requirement to undertake the construction of the Development and which detail (without limitation) payments made on completion of the sale of the whole or part of the completed Development and during the construction and on completion of the Development

"GDC" means Gross development cost as defined in Appendix F of the RICS guidance note 1st edition entitled "Financial viability in planning" and assigned reference GN 94/2012 or any replacement, update or amendment of the same In addition the Council will accept in the calculation of GDC the actual costs incurred in the Development up to the time of submission to the Council of the Viability Appraisal pursuant to Schedule 3 of this Agreement and such details shall be included in the Viability Appraisal provided always that any such actual costs are allowed for in the said Appendix F of the RICS guidance note or any replacement, update or amendment of the same

"GDV" means Gross development value as defined in Appendix F of the RICS guidance note 1st edition entitled "Financial viability in planning" and assigned reference GN 94/2012 or any replacement, update or amendment of the same together with the value of any grant funding/public subsidy received in respect of the Development In addition the Council will accept in the calculation of GDV the actual sale prices achieved at the development up to the time of submission by the Owner

to the Council of the Viability Appraisal pursuant to Schedule 3 of this Agreement and such details shall be included in the Viability Appraisal

"Gross Margin" the GDV after deducting the GDC as more particularly detailed in the Viability Appraisal,

"Index Linked" adjusted on an annual basis or pro rata per diem from the date of this Agreement to the relevant date of payment in accordance with the Retail Price Index and "Index Linking" shall be construed accordingly.

"Interest" interest at 4% (four per cent) above the base lending rate of the Bank of England from time to time

"Maximum Contribution" the sum of £350,969.00 (three hundred and fifty thousand nine hundred and sixty nine pounds) Index Linked

"NPPF" the National Planning Policy Framework issued in February 2019 being the framework setting out the Government's planning policies for England and how these are expected to be applied as may be amended or any replacement of the same

"Occupation" means occupation of any part of the Development for the purposes permitted by the Planning Permission but does not include use by personnel whilst engaged in construction, fitting out or decoration of the Dwellings or occupation for marketing or display or occupation in relation to security operations and "Occupy" and "Occupied" shall be construed accordingly,

"Open Space Contribution" shall be the sum of £227,969 00 (two hundred and twenty seven thousand nine hundred and sixty nine pounds) Index Linked calculated in accordance with the provisions of Policy OB6 of the SPD or any replacement, update or amendment of the same

"Plan" the plan attached to the agreement,

"Planning Permission" the planning permission granted pursuant to the Application substantially in the form as appended at Schedule 2 and as may be amended by any non material amendment,

"Pre Sale" means a Forward Sale or Forward Funding Arrangement or Private Rental Sector Forward Funding Arrangement of the whole or part of the completed Development prior to the Calculation Date,

"Private Rental Sector Forward Funding Arrangement" means a Forward Funding Arrangement in which the Owner will retain the whole or part of the Development on Completion of Construction as a Private Rental Sector Investment

"Private Rental Sector Investment" means a Development that will deliver new-build homes for the private rental market, to be retained by the Owner on Completion as an investment

"Profit Level" means in the case of a Pre Sale when the Gross Margin is equivalent to 18% of the GDC and in all other cases is when the Gross Margin is equivalent to 10% of the GDC

"Public Realm Contribution" shall be the sum of £123,000 00 (one hundred and twenty three thousand pounds) Index Linked calculated in accordance with the provisions of Policy OB6 of the SPD or any replacement, update or amendment of the same

"Regulations" the Community Infrastructure Levy Regulations 2010

"Retail Price Index" twelve (12) month percentage change in the All Items Retail Price Index published by the Office for National Statistics Centre and in the Monthly Digest of Statistics (or contained in any official publication substituted therefor) or such other index as may from time to time be published in substitution therefor

"RICS" the Royal Institution of Chartered Surveyors

"Site" the property described in Schedule 1 and shown for the purposes of identification only edged red on the Plan.

"SPD" the City of Salford Council's Supplementary Planning Document entitled "Planning Obligations" (adopted 18 June 2015).

"UDP" the City of Salford Unitary Development Plan 2004-2016 (adopted 21 June 2006)

"Viability Appraisal" a written appraisal substantially in the form set out in Schedule 5 to assess the Gross Margin required to be provided on the Calculation Date in accordance with the provisions of Schedule 3 of this Agreement. Further guidance on the format to follow can be found in the first edition of the Guidance Note published in August 2012 by the Royal Institution of Chartered Surveyors titled "Financial Viability in Planning" or any amendment, update or replacement of the same

"Viability Assessment Fee" a fee of £125 00 (one hundred and twenty five pounds) plus VAT per hour to be capped at a maximum of £2,500 00 (two thousand five hundred pounds) to cover the cost reasonably and properly incurred by the Council to review the Viability Appraisal in order to determine whether and the extent to which the Development can support a requirement to provide the Viability Payment subject to the receipt by the Owner of a valid VAT invoice from Council together with a summary of the hours spent by the Council in its review of the Viability Appraisal.

"Viability Payment" a payment required to be made by the Owner to the Council if the Viability Appraisal shows that the Profit Level as determined under paragraph 6 of Schedule 3 of this Agreement will be achieved and will be the amount by which the Gross Margin exceeds the Profit Level PROVIDED THAT the Viability Payment shall be required to be no more than the amount that is needed in order to equal the Maximum Contribution The Viability Payment will be payable within the timescale set out in the provisions contained in Schedule 3

"Working Day" means any day except Saturday Sunday or a bank holiday and reference to "Working Days" shall be construed accordingly

1.2 The Clause headings do not affect this interpretation

1 3 Unless otherwise indicated, references to Clauses and Schedules are to Clauses of and Schedules to this Agreement and references in a Schedule to a Part or Paragraph are to a Part or Paragraph of that Schedule

1 4 References to any statute or statutory provision include reference to

1 4 1 all Acts of Parliament and all other legislation having legal effect in the United Kingdom as directly or indirectly amended, consolidated, extended, replaced or re-enacted by any subsequent legislation, and

1 4 2 any orders, regulations, instruments or other subordinate legislation made under that statute or statutory provision

1 5 Except for the provisions of Clause 9 references to the Site include any part of it

1 6 References to any party in this Agreement include the successors in title of that party In addition, references to the Council include any successor local planning authority exercising planning powers under the Act and any successor local highway authority exercising powers under the Highways Act 1980

1 7 **"Including"** means **"including, without limitation"**

1 8 Any covenant by the Owner or the Council not to do any act or thing includes a covenant not to permit or allow the doing of that act or thing.

1 9 If any provision is held to be illegal, invalid or unenforceable, the legality, validity and enforceability of the remainder of this Agreement is to be unaffected.

1 10 Words importing the singular meaning where the context so admits include the plural meaning and vice versa

1.11 Words of the masculine gender include the feminine and neuter genders and words denoting actual persons include companies, corporations and firms and all such words shall be construed interchangeable in that manner

2 **PLANNING OBLIGATION**

This Agreement is made pursuant to section 106 of the Act, section 111 of the Local Government Act 1972, section 1 of the Localism Act 2011 and all other enabling legislation and is a planning obligation for the purposes of section 106 of the Act, with the intent that covenants hereinafter contained shall be enforceable by the Council acting under the powers contained in section 106 or such other enabling powers against the Owner

3 **CONDITION PRECEDENT**

3.1 This Agreement is conditional upon the grant of the Planning Permission and Commencement of Development save for the provisions of Clauses , 9, 11, 15, 17 and 18 which shall have immediate effect

4 **CONDITION SUBSEQUENT**

If the Planning Permission for the Development has not been implemented by the carrying out of a material operation in accordance with the provisions of sections 56, 91 and 93 of the Act or is revoked or modified in whole or in part (other than in approval of an application by or on behalf of the Owner) or quashed or declared unlawful as a result of legal proceedings then this Agreement shall absolutely determine and become null and void but without prejudice to the rights of either party against the other in respect of any antecedent breach.

5 **THE OWNER'S COVENANTS**

5.1 The Owner on behalf of himself and any person deriving title to any part of the Site from the Owner hereafter hereby covenants with the Council so as to bind the Site to fully observe and perform the obligations on his part contained in this Agreement including those obligations set out in Schedule 3 and hereby agrees that the Site shall be permanently subject to the obligations, restrictions and provisions specified herein, such obligations being planning obligations for the purpose of section 106 of the Act.

6 **THE COUNCIL'S COVENANTS**

The Council hereby covenants with the Owner to observe and perform the obligations on its part in this Agreement including those obligations set out in the Schedule 4.

7 **DISPUTE RESOLUTION**

7.1 In the event of any dispute arising in connection with any of the terms of this Agreement other than a dispute involving the construction or interpretation of the terms of this Agreement or the enforcement of any decision pursuant to this Clause, the same shall unless the Council and the Owner otherwise agree be referred to an Expert or in relation to the Viability Appraisal to a Chartered Surveyor to be appointed by agreement between the Council and the Owner.

7.2 If the Council and the Owner are unable to agree on the appointment of an Expert or Chartered Surveyor within thirty (30) days of one party serving notice on the other calling for the appointment of an Expert or Chartered Surveyor, then an Expert or Chartered Surveyor shall be appointed on the application of either party to the President for the time being of the Royal Town Planning Institute or the Royal Institution of Chartered Surveyors as applicable.

7.3 Any reference of a dispute to an Expert or Chartered Surveyor shall if the parties are agreed in writing be deemed to be a reference to an expert or chartered surveyor (and not to an arbitrator) whose decision shall be final and binding (save for manifest error) but shall otherwise be deemed to be a reference to an arbitrator pursuant to the Arbitration Act 1996 and any statutory amendment variation substitution or re-enactment thereof.

7.4 Any party to this Agreement shall be entitled to submit to the Expert or Chartered Surveyor representations and cross-representations with such supporting evidence as they shall respectively consider necessary and the Expert or Chartered Surveyor shall have regard thereto in making his decision which shall be delivered in writing. The reference of any dispute shall include authority to determine in what manner all the costs of the referral shall be paid.

8 **WAIVER**

No waiver (whether expressed or implied) by the Council of any breach or default in performing or observing any of the covenants terms or conditions of this Agreement shall constitute a continuing waiver and no such waiver shall prevent the Council from enforcing any of the relevant terms or conditions or from acting upon any subsequent breach or default

9 **CHANGE IN OWNERHIP & LIABILITY**

9 1 The Owner agrees with the Council to give the Council immediate written notice of any change in ownership of any of its interest in the Site occurring before all the obligations under this Agreement have been discharged such notice to give details of the transferee's full name and registered office (if a company or usual address if not) together with (unless the purchase relates to the entirety of the Site) the area of the Site or unit of occupation purchased by reference to a plan.

9 2 No person shall be liable for any breach, non performance and non observance of the covenants, obligations and restrictions contained in this Agreement after it shall have parted with its entire interest in the Site or the part in respect of which such breach occurs but without prejudice to liability for any subsisting breach arising prior to parting with such interest nor shall this hinder or preclude the Council's rights as the Local Planning Authority to require that the breach, non performance or non observance be remedied after that person has parted with its interest in the Site

9.3 The covenants, restrictions and obligations contained in this deed are planning obligations for the purposes of section 106 of the TCPA 1990 and so far as they relate to the Site are entered into by the Owner with the intention that they bind all the interests held by him in the Site and his respective successors and assigns provided always that the provisions of this deed shall not be enforceable against the owners and occupiers of individual residential or commercial units constructed on the Site pursuant to the Planning Permission or any statutory undertakers in relation to any parts of the Site acquired by them for electricity sub-stations, gas governor stations or pumping stations

10 **COUNCIL'S CONSENT OR APPROVAL**

Where in this Agreement the consent, agreement or approval of the Council is required to be given by the Council, the Council confirms that such consent, agreement or approval shall not be unreasonably withheld or delayed provided that this shall not fetter the proper discretion of the Council.

11 **LOCAL LAND CHARGE AND LAND REGISTRY ENTRY**

11.1 This Agreement is a Local Land Charge and shall be registered as such by the Council

11.2 For the purpose of noting this Agreement on the titles of the Owner registered under title numbers GM519675, GM347596, GM203196 and GM179064 at the Land Registry the Owner will on the date hereof provide the Council with completed Form AN1 (or any replacement of this form) together with either a cheque made payable to the Land Registry to cover the requisite fee or alternatively with the Owner's solicitor's completed Land Registry account key number details inserted in the form The Council will arrange for the AN1 (or any replacement of this form) to be registered at

the Land Registry and the Owner will supply the Council with a copy of the amended registers as soon as reasonably practicable following their receipt by the Owner from the Land Registry

11 3 The Council will upon receipt of a written request of the Owner's or their successors in title, at any time after each or all of the obligations set out herein have been fulfilled in their entirety, issue written confirmation of such performance or discharge and thereafter cancel all related entries in the register of local land charges

11 4 The reasonable and proper costs of registration and cancellation pursuant to clauses 11 2 above shall be met by the Owner if requested by the Council

12 **NON-PROHIBITION ON DEVELOPMENT**

Nothing in this Agreement shall prohibit or limit the right to develop any part of the Site in accordance with a planning permission (other than the Planning Permission granted or modification, variation or amendment thereof, (whether or not on appeal)) including any permission granted in respect of the Site pursuant to section 73 of the TCPA 1990 after the date of this Agreement

13 **THE CONTRACTS ACT**

Save as provided in respect of the successors in title to the Site or any successor to the relevant statutory functions of the Council this Agreement shall not be enforceable by any third party pursuant to the Contracts (Rights of Third Parties) Act 1999 and no third party shall acquire any benefit rights or claims whatsoever pursuant thereto

14 **COMMUNICATION**

14.1 Any notice or document to be served on or sent pursuant to this Agreement shall either be delivered personally or sent by recorded delivery service

14 1 1 to the Council and addressed to the Director at the Council's address first above written,

14 1 2 to the Owner at their last known addresses,

15 **FEES**

15 1 The Owner shall pay forthwith to the Council its legal fees reasonably and properly incurred in preparation of this agreement of £[INSERT] ,

15 2 Receipt by the Council of the payment of such sum shall not create any lawyer-client type contractual relationship between the Council and the Owner nor absolve the Owner from any liability or obligation imposed upon them by the terms of this Agreement or by statute or at common law,

15 3 Following the submission of the Viability Appraisal by the Owner to the Council under Schedule 3 of this Agreement the Owner shall pay to the Council the related Viability Assessment Fee within 10 Working Days of his receipt from the Council of a valid VAT invoice detailing the amount and the time spent by the Council on its review

16. **INTEREST**

If any payment due under this Agreement is paid late Interest will be payable from the date payment is due to the date that payment is received.

17 **JURISDICTION**

This Agreement is governed by and interpreted in accordance with the law of England

18 **COMPLETION**

The provisions of this Agreement (other than this clause which shall be of immediate effect) shall be of no effect until this Agreement has been dated

EXECUTED as a deed by the parties on the day and year first hereinbefore appearing

SCHEDULE 1

The Site

Land at the former Lyceum Theatre, Church Street, Eccles, M30 0LZ, Salford and shown for the purposes of identification only edged red on the Plan

APPLICATION SITE BOUNDARY



Ordnance Survey, (c) Crown Copyright 2014. All rights reserved. Licence number 100022432

0 10 20 30 40 50
metres

THE Common Seal of THE CITY OF SALFORD was affixed
to
the Presence of:

AUTHORISED SIGNATORY

SITE LOCATION PLAN
603/PL/01 MARCH 2015
1:1250 (@A3)
THE FORMER CROWN BUILDING
CHURCH STREET ECCLES

NOTE:
This drawing should not be scaled, only use figured dimensions.
It is the responsibility of the contractor to report any discrepancies or inconsistancies on this drawing and request clarification before proceeding.
This drawing is copyright. It must not be copied or used for any other purposes than those intended when issued by ourselves unless our express permission is granted.

OCHRE BUILDING DESIGN LTD
www.ochredesign.co.uk

SCHEDULE 2

Draft Planning Permission

THE COUNCIL OF THE CITY OF SALFORD
CIVIC CENTRE
CHORLEY ROAD
SWINTON, M27 5BW

TOWN AND COUNTRY PLANNING ACT 1990

DECISION NOTICE : GRANT

PLANNING PERMISSION 16/68464/FUL

Date of Decision: SIGNED

Date of Issue: On behalf of the Council

Applicant:

Mr Jackson
c/o Mr Daniel Jackson
Indigo Planning Limited
Lowry House, 17 Marble Street
Manchester
M2 3AW
United Kingdom

Part 1 – Particulars of Application: **Date of Application:** 2 July 2016

Location of development:
Former Crown Bingo Hall
Church Street
Eccles
Salford
M30 0LZ

Particulars of development:
Part demolition of existing building and construction of an eight storey side and rear addition comprising 82 apartments, commercial unit (Use Classes A1, A2, B1, D1 and D2) measuring 178 square metres and car and bicycle parking

Part 2 – Particulars of Decision:

The Council of the City of Salford hereby gives notice in pursuance of the provisions of the Town and Country Planning Act 1990 that **permission has been granted** for the carrying out of the development referred to in Part 1 hereof in accordance with the application and plans submitted subject to the following condition(s):

1. The development hereby permitted shall be begun no later than three years beginning with the date of this permission.

   Reason: Required to be imposed by Section 91 of the Town and Country Planning Act 1990 (as amended).

2. The development hereby permitted shall be carried out in accordance with the following plans:

   - Dwg. No. 603/PA/203 entitled 'Ground floor plan' prepared by Ochre Building Design Ltd. and dated August 2018;
   - Dwg. No. 603/PA/204 entitled 'First floor plan' prepared by Ochre Building Design Ltd. and dated August 2018;

DRAFT

- Dwg. No. 603/PA/205 entitled 'Second floor plan' prepared by Ochre Building Design Ltd. and dated August 2018;
- Dwg. No. 603/PA/206 entitled 'Third floor plan' prepared by Ochre Building Design Ltd. and dated August 2018;
- Dwg. No. 603/PA/207 entitled 'Fourth floor plan' prepared by Ochre Building Design Ltd. and dated August 2018;
- Dwg. No. 603/PA/208 entitled 'Fifth floor plan' prepared by Ochre Building Design Ltd. and dated August 2018;
- Dwg. No. 603/PA/209 entitled 'Sixth floor plan' prepared by Ochre Building Design Ltd. and dated August 2018;
- Dwg. No. 603/PA/210 entitled 'Seventh floor plan' prepared by Ochre Building Design Ltd. and dated August 2018;
- Dwg. No. 603/PA/211 entitled 'Roof plan' prepared by Ochre Building Design Ltd. and dated August 2018;
- Dwg. No. 603/PA/212 entitled 'Church Street elevation' prepared by Ochre Building Design Ltd. and dated August 2018;
- Dwg. No. 603/PA/213 entitled 'Mather Road elevation' prepared by Ochre Building Design Ltd. and dated August 2018;
- Dwg. No. 603/PA/214 entitled 'Eastern elevation' prepared by Ochre Building Design Ltd. and dated August 2018;
- Dwg. No. 603/PA/215 entitled 'Northern elevation' prepared by Ochre Building Design Ltd. and dated August 2018.

Reason: For the avoidance of doubt and in the interests of proper planning.

3. Notwithstanding the details shown on the approved plans, the development hereby permitted shall not be occupied until full details of both hard and soft landscape works have been submitted to and approved in writing by the Local Planning Authority. The details shall include, but not necessarily be limited to:

- All hard surface finishes, including permeable paving; and
- Planting plans, specifications and schedules (including plant sizes, species and numbers/densities) and a scheme detailing the timing/phasing of all landscape works.

All works shall be carried out in accordance with the approved scheme of timing/phasing or within 18 months of first occupation, whichever is the later.

All vegetation planted in accordance with this condition which is removed, uprooted, destroyed, dies, become severely damaged or seriously diseased within five years of planting shall be replaced within the next planting season by vegetation similar in size and species to that originally required to be planted unless the Local Planning Authority gives its consent in writing to any variation.

Reason: To ensure that the site is satisfactorily landscaped having regard to its location and the nature of the development in accordance with Policies DES1 and DES9 of the Salford Unitary Development Plan and the National Planning Policy Framework.

4. Prior to the commencement of the development hereby permitted (except for demolition and enabling works) a Phase 2 Site Investigation report shall be submitted to and approved in writing by the Local Planning Authority. This investigation shall address the nature, degree and extent of any contaminated materials on site and identify and assess risks to receptors, focusing primarily on risks to human health and the wider environment.

Reason: In the interests of public safety and in accordance with Retained Policy EN17 of the Salford Unitary Development Plan and the National Planning Policy Framework.

Reason for pre-commencement condition: Works on site have the potential to liberate contaminated materials and the nature of any such materials must first be understood prior to the commencement of development.

5. Should the Phase 2 assessment required by Condition 4 identify any unacceptable risks to receptors, prior to above ground works commencing, the applicant shall submit to and have approved in writing by the Local Planning Authority a contaminated land remediation strategy. This strategy shall be prepared by a suitably competent person(s) and the development shall thereafter be carried out in complete accordance with the strategy or any variations thereto, as may be agreed in writing by the Local Planning Authority.

Reason: In the interests of public safety and in accordance with Retained Policy EN17 of the Salford Unitary Development Plan and the National Planning Policy Framework.

6. Pursuant to Condition 4 and prior to the first occupation of the development hereby permitted, a verification plan shall be submitted to and approved in writing by the Local Planning Authority. This plan shall detail the evidence, data and information that will be collected to demonstrate (by way of a future verification report) that the works set out in the remediation strategy required by Condition 5 have been completed. The plan shall detail any requirements for the long-term monitoring of pollutant linkages, maintenance and contingency arrangements.

Reason: In the interests of public safety and in accordance with Retained Policy EN17 of the Salford Unitary Development Plan and the National Planning Policy Framework.

7. Pursuant to Condition 6 and prior to the first occupation of the development hereby permitted, a Verification Report shall be submitted to and approved in writing by the Local Planning Authority. This report shall validate that all required remedial works were completed in accordance with those agreed by the Local Planning Authority.

Reason: In the interests of public safety and in accordance with Retained Policy EN17 of the Salford Unitary Development Plan and the National Planning Policy Framework.

8. No development shall take place until a Level 3 or 4 programme of archaeological building recording has been submitted to and approved in writing by the Local Planning Authority. This programme is to be undertaken by a suitably qualified buildings archaeologist and include a detailed background study referencing appropriate historic documentation and cartographic, image and index sources as well as details of how all results will be disseminated to the local and wider communities.

Reason: In accordance with the provisions of Retained Policy CH5 of the Salford Unitary Development Plan and Paragraph 199 of the National Planning Policy Framework.

Reason for pre-commencement condition: The archaeological interests of the building can only be recorded prior to the commencement of the development.

9. Prior to the commencement of any earthworks, a method statement detailing how Japanese Knot Weed (JKW) will be eradicated from the site and/or controlled shall be submitted to and agreed in writing to the Local Planning Authority. The agreed statement shall be implemented in full and adhered to at all times unless otherwise agreed in writing by the Local Planning Authority.

Reason: It is an offence under the Wildlife & Countryside Act 1981 to introduce plants or cause to grow wild any vegetation listed in Schedule 9, Part 2 of the Act. Species such as JKW are included in this schedule.

10. Prior to the commencement of the development hereby approved, except for remediation works, the applicant shall submit to and have approved in writing by the Local Planning Authority:

- Details at a scale of 1:10 of the junctions between retained elements and the new addition; and
- Details at a scale of 1:10 and/or 1:50 where appropriate of all restoration works to the Church Street canopy, including its railings. These details shall match the original known details as far as practicable.

All agreed details shall be implemented prior to the first occupation of the development hereby approved and be maintained thereafter.

Reason: To ensure the appropriate design and finishing of the building in accordance with the provisions of Retained Policies DES1, DES8 and CH1 of the Salford Unitary Development Plan and the National Planning Policy Framework.

Reason for pre-commencement condition: The manner in which retained elements will be supported and finished must first be understood prior to the commencement of development.

11. No development shall take place, including demolition or excavation works, until a Construction Method Statement has been submitted to and approved in writing by the Local Planning Authority. The approved Statement shall be adhered to throughout the construction period. The Statement shall include:

(i) A method statement detailing how the retained elements of the building will be supported during both the demolition and construction phases;
(ii) The times of construction activities on site which, unless agreed otherwise as part of the approved Statement, shall be limited to between 9am-6pm Monday to Friday and 9am-12 noon on Saturdays (no working on Sundays or Bank Holidays). Quieter activities carried out inside the building such as electrical works, plumbing and plastering may take place outside of agreed working times so long as they do not result in significant disturbance to neighbouring occupiers;
(iii) A comprehensive Traffic Management Strategy (TMS) ensuring off-site disruption is kept to a minimum and ensuring no increase in risk to pedestrians and road users during both the demolition and construction phases;
(iv) The spaces for and management of site operatives and visitors vehicles;
(v) The storage and management of plant and materials (including loading and unloading activities);
(vi) The erection and maintenance of security hoardings including decorative displays and facilities for public viewing, where appropriate;
(vii) Measures to prevent the deposition of dirt on the public highway;
(viii) Measures to control the emission of dust and dirt during demolition and construction;
(ix) A scheme for recycling/disposing of waste resulting from demolition and construction works;
(x) Measures to minimise disturbance to any neighbouring occupiers from noise and vibration, including from any piling activities;
(xi) Measures to prevent the pollution of watercourses; and
(xii) A community engagement strategy which explains how local neighbours will be kept updated on the construction process and key milestones and how they can report to the site manager or other appropriate representative of the developer instances of unneighbourly behaviour from construction operatives. The strategy shall also detail the steps that will be taken when unneighbourly behaviour has been reported. A log of all reported instances shall be kept on record and made available for inspection by the Local Planning Authority upon request.

Reason: In the interests of the amenity of neighbours and highway safety in accordance with Retained Policies DES7 and A8 respectively of the Salford Unitary Development Plan and the National Planning Policy Framework.

Reason for pre-commencement condition: The manner in which the site and surrounding public highways will be managed during the construction process must first be understood prior to the commencement of building works.

12. Notwithstanding any description of materials upon the application plans, no above ground construction works shall take place until samples or full details of all materials to be used externally have been submitted to and approved in writing by the Local Planning Authority in consultation with the Chair of the Planning Panel. This includes samples/details of all facing bricks. These bricks shall complement the retained street walls though differ in colour, appearance and/or texture. Details of all mortar(s), window frames, glazing, balustrades and rainwater goods are also required. Only the materials so approved shall be used in accordance with the terms of this permission.

Reason: In order to ensure a satisfactory appearance and in the interests of visual amenity in accordance with Retained Policy DES1 of the Salford Unitary Development Plan and the National Planning Policy Framework.

13. Prior to the first occupation of the development hereby permitted, the applicant shall submit to and have approved in writing by the Local Planning Authority details of a heritage interpretation panel(s) to be displayed on site. This panel(s) shall set out the history of the site and the former theatre which occupied it and be displayed in a prominent location. The panel(s) shall be displayed as agreed prior to the first occupation of the development and maintained thereafter

Reason: To allow for the future appreciation and understanding of the former theatre which occupied the site in accordance with the provisions of Retained Policy CH1 of the Salford Unitary Development Plan and the National Planning Policy Framework.

14. No development except for demolition and remediation works shall take place until a strategy for surface water drainage using source control sustainable drainage methods and which includes details of how water quality will be improved and how existing surface water discharge rates reduced has been submitted to and approved in writing by the Local Planning Authority. The approved strategy shall be implemented prior to the first occupation or use of the development hereby approved unless alternative timescales have been agreed in writing by the Local Planning Authority.

Reason: To reduce the risk of flooding in accordance with the provisions of Retained Policy EN19 of the Salford Unitary Development Plan and the National Planning Policy Framework.

Reason for pre-commencement condition: It is important to understand the potential surface water flooding impacts generated by the development and incorporate appropriate mitigation measures into the building during the design phase.

15. Prior to the first occupation of the building hereby approved, a sustainable drainage management and maintenance plan for the lifetime of the development shall be submitted to and agreed in writing by the Local Planning Authority. This plan shall include as a minimum:

a. Arrangements for adoption by an appropriate body or statutory undertaker or management and maintenance by a resident's management company; and
b. Arrangements for inspection and on-going maintenance of all elements of the drainage system to ensure its efficient operation throughout its lifetime.

The development shall subsequently be completed, maintained and managed in accordance with the approved plans.

Reason: To ensure that appropriate management and maintenance arrangements are in place to prevent flood impacts in accordance with the provisions of Retained Policy EN19 of the Salford Unitary Development Plan and the National Planning Policy Framework.

16. Foul and surface water shall be drained on separate systems.

Reason: To secure proper drainage and to manage the risk of flooding in accordance with the provisions of Retained Policy EN17 of the Salford Unitary Development Plan and the National Planning Policy Framework

17. The surface water discharge rate shall not exceed 50% of the existing discharge rate or greenfield equivalent, whichever is the greater.

Reason: To reduce the risk of flooding in accordance with the provisions of Retained Policy EN19 of the Salford Unitary Development Plan and the National Planning Policy Framework.

18. Prior to the first occupation of the development hereby permitted, six on site car parking spaces shall be fitted with electric vehicle charging points. These points shall be retained in perpetuity and be capable of Type 2 "Fast" charging and wired to a dedicated 30A spur to provide 7KV charging capacity.

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Reason: To encourage the uptake of ultra-low emission vehicles and to safeguard local air quality in accordance with the provisions of Retained Policy EN17 of the Salford Unitary Development Plan and the National Planning Policy Framework.

19. No development except for demolition and remediation works shall take place until a detailed noise mitigation scheme for the building envelope (roof, walls and windows) and habitable rooms (living, dining and bedrooms) in accordance with the requirements of British Standard (BS) 8233:2014 (Guidance on Sound Insulation and Noise Reduction from Buildings) has been submitted to and approved in writing by the Local Planning Authority.

This scheme shall also include ventilation measures designed in accordance with the 'Draft ANC Acoustics Ventilation and Overheating Residential Design Guide'. These ventilation measures shall also comply with the requirements of BS 8233:2014.

The development shall thereafter be undertaken in accordance with the agreed scheme.

Reason: To safeguard the general amenity of future residents of the building in accordance with the provisions of Retained Policy EN17 of the Salford Unitary Development Plan and the National Planning Policy Framework.

20. Prior to the first occupation of the approved apartments a Site Completion Report confirming that all noise attenuation measures required in accordance with BS 8233:2014 have been implemented as agreed shall be submitted to and approved in writing by the Local Planning Authority.

Reason: To safeguard the general amenity of future residents of the building in accordance with the provisions of Retained Policy EN17 of the Salford Unitary Development Plan and the National Planning Policy Framework.

21. Prior to the first occupation of the non-residential tenancy, the applicant shall submit to and agree in writing with the Local Planning Authority its opening hours (including associated delivery and collection times). The tenancy shall thereafter operate in accordance with the agreed operating hours unless otherwise agreed in writing by the Local Planning Authority.

Reason: To safeguard the general amenity of future residents of the building in accordance with the provisions of Retained Policy EN17 of the Salford Unitary Development Plan and the National Planning Policy Framework.

22. Prior to the first installation of any external plant and/or equipment associated with the non-residential tenancy, the applicant shall submit to and have approved in writing by the Local Planning Authority a noise assessment of this plant/equipment. This assessment shall demonstrate that the rating level (LAeq,T) of all plant/equipment when operating simultaneously does not exceed the typical background noise level (LA90,T) by more than -5dBA at any time when measured at the boundary of the nearest noise sensitive premise. Noise measurements and assessments shall be carried out according to BS 4142:2014 (Methods for rating and assessing industrial and commercial sound).

Reason: To safeguard the general amenity of future residents of the building in accordance with the provisions of Retained Policy EN17 of the Salford Unitary Development Plan and the National Planning Policy Framework.

23. The development hereby approved shall not be brought into first use or occupation until such time as a Full Travel Plan has been submitted to, and approved in writing by, the Local Planning Authority.

Within six months of the development hereby approved being brought into first use or occupation, a further updated Travel Plan shall be submitted to the Local Planning Authority for approval. This Travel Plan shall include updated Plan budget/targets, action plan, Plan Coordinator details, updated Travel Pack information and details of on-going incentives (such as weekly/monthly public transport tickets and/or bicycle discount coupons). This updated Travel Plan shall be implemented as agreed and reviewed in accordance with the timetable embodied therein.

Reason: To ensure that the development makes best use of available sustainable transport options and does not impact upon the local highway network in accordance with Retained Policy A8 of the Salford Unitary Development Plan and the National Planning Policy Framework.

24. Prior to the first occupation of the development hereby approved, the applicant shall provide a minimum of four disabled person's car parking spaces on site near to resident's entries. These spaces are to be reserved for resident Blue Badge Holders or Blue Badge visitors only as may be necessary.

Reason: To provide for the needs of residents and visitors with limited mobility in accordance with the provisions of Retained Policy A2 of the Salford Unitary Development Plan and the National Planning Policy Framework.

25. Prior to the first occupation of the development hereby permitted the applicant shall submit to and have approved in writing by the Local Planning Authority a Refuse Management Scheme (RMS). This RMS shall detail all waste collection arrangements and confirm that no bins will be left on the public highway at any time. The agreed measures shall be implemented prior to the first occupation of the development and maintained thereafter.

Reason: To ensure appropriate refuse collection arrangements and the safety of pedestrians and other road users in accordance with Retained Policy A8 of the Salford Unitary Development Plan and the National Planning Policy Framework.

26. Prior to the first occupation of the development hereby permitted, in consultation with the Local Highways Authority, the applicant shall submit to and have approved in writing by the Local Planning Authority a scheme of Traffic Regulation Orders (TROs) along surrounding streets. This includes, but may not be limited to, the removal of identified double yellow lines, alterations to existing limited parking bays, the introduction of a long loading bay and the provision of junction protection north of the site access point. The approved scheme shall be implemented prior to first occupation.

Reason: To provide for any residual parking needs of the development and to ensure the safety of pedestrians and other road users in accordance with Retained Policy A8 of the Salford Unitary Development Plan and the National Planning Policy Framework.

27. The on site bicycle store shall be equipped with multi-tier bicycle racks prior to the first occupation of the development hereby permitted and retained as such thereafter.

Reason: To ensure the bicycle store is secure and in turn encourage cycling as a mode of transport to/from the site in accordance with the provisions of Retained Policy A2 of the Salford Unitary Development Plan and the National Planning Policy Framework.

Statement of conformity with Article 35 of The Town and Country Planning (Development Management Procedure) (England) Order 2015

The Local Planning Authority worked positively and proactively with the applicant to identify various solutions during the application process to ensure that the proposal comprised sustainable development and would improve the economic, social and environmental conditions of the area and would accord with the development plan. These were incorporated into the scheme and/or have been secured by planning condition. The Local Planning Authority has therefore implemented the requirement in Paragraph 38 of the NPPF.

Notes to Applicant:

1. This permission only authorises the carrying out of development which is entirely in accordance with the approved plans and other details submitted. In the event of any intended amendments to these details and plans, including the siting of the development in relation to site boundaries or adjacent properties, the developer must first contact the Development Management Section before any development is commenced for advice regarding the necessity to obtain further permission.

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2. This Notice **does not** constitute an approval under the Building Regulations 2000 and you should contact the Local Authority Building Control Section for further information. For further information visit the City of Salford web site **www.salford.gov.uk** under the heading 'Living'.

3. Please note that any new building(s) or any existing building(s) being converted into separate dwellings (including apartments etc.) or businesses will legally require an official postal address. This is enforceable under the Public Health Act 1925. The Developer should contact Salford City Council who will process the postal addressing. For further information visit the City of Salford web site **www.salford.gov.uk** under the heading 'Living'.

4. This Notice **does not** constitute an approval of the highway layout for adoption in accordance with the Highways Act 1980 and you should contact the Local Authority Engineering Design Section for further information regarding the requirements for highway adoption. For further information visit the City of Salford web site **www.salford.gov.uk** under the heading 'Living'.

5. The development hereby approved shall be constructed in accordance with Approved Document L of the Building Regulations.

6. The applicant is to enter into a S278 legal agreement with the Local Highways Authority and provide the funding necessary to facilitate all off-site highways works. The agreement shall also include improvements to and the raising of footways surrounding the site, the removal of disused light-wells, the provision of dropped kerbs and tactile paving in close proximity to the site and the relocation of any street lighting, drainage or other utility services affected by the development. The permission of the relevant utility providers must be obtained prior to the commencement of any works.

7. A Dilapidation Survey shall be undertaken following the completion of the development to ensure the adopted footways and carriageways adjacent to the site have not been damaged. The use of any non-standard materials will require a service level agreement with the Local Highways Authority. This will include a 30 year commuted sum for maintenance.

8. The applicant is reminded that under the Conservation of Habitats and Species Regulations 2010 (Amended 2012) it is an offence to disturb, harm or kill bats. If a bat is encountered/suspected during the demolition phase, all on site activities shall immediately cease and a suitably licensed bat worker employed to advise how best to proceed.

9. The applicant is reminded that under the Wildlife and Countryside Act 1981 (as amended) it is an offence to remove, damage or destroy the nest of a wild bird while the nest is in use or being built. Planning consent does not provide a defence against prosecution under this Act. If a bird's nest is encountered or suspected work shall immediately cease and a suitably experienced ecologist employed to advise how best to proceed.

10. The applicant is advised that it is his/her responsibility to adhere to the regulations of Part 2A of the Environmental Protection Act 1990, the National Planning Policy Framework (NPPF) and current Building Control Regulations with regards to contaminated land. Responsibility to ensure the safe development of contaminated land rests with the developer.

11. With respect to gas protection measures the applicant's attention is drawn to BRE 414 (Protection Measures for Housing on Gas-Contaminated Sites). In addition, the requirements of BS8845:2015 (Code of Practice for the design of protective measures for methane and carbon dioxide ground gases for new buildings) should be followed for installation and the verification requirements of CIRIA C735 (Good Practice on the Testing and Verification of Protection Systems for Buildings Against Hazardous Ground Gasses) will need to be submitted.

12. Verification of gas protection systems needs to be undertaken during the construction process or it may not be possible to discharge related conditions. This can lead to issues with subsequent property searches and/or mortgages.

13. The physical security measures noted in Section 4.0 of the Crime Impact Statement submitted in support of the application (ref.: 2015/0229/CIS/01 dated 5 November 2018) should be incorporated into the

development.

14. Please note the advice of United Utilities as set out in its consultation response dated 28 July 2016 and available for viewing on the Council's electronic case file.

Useful contacts -

Dilapidation Survey:

The developer shall contact John Horrocks to arrange a full dilapidation/condition survey of all adopted highways surrounding the site prior to works commencing. Tel: 0161 603 4046.

Highway Permits/Licensing:

Applications for all forms of highway permits/licenses shall be made in advance of any works being undertaken on the adopted highway. Note: NO boundary fencing shall be erected or positioned on any part of the adopted highway without first seeking the relevant permits/licenses from the Local Highway Authority. Tel: 0161 603 4046

General Highway Information:

Requests for general information regarding the adopted highway network shall be directed to the Local Highway Authority (John Horrocks, 0161 603 4046).

Salford City Council would like to encourage all residents and businesses to help make the City a better place to live and work by transforming hard grey areas into living, planted places that enrich lives. The Royal Horticultural Society is running a campaign to "Green Grey Britain" which the City Council fully supports. We are asking all applicants to view the RHS website at www.rhs.org.uk and to pledge support for the campaign through the implementation of landscaping schemes/proposals which form part of planning permissions granted by the City Council.

Appeals to the Secretary of State

- If you are aggrieved by the decision of your local planning authority to refuse planning permission for the proposed development or to grant it subject to conditions, then you can appeal to the First Secretary of State under section 78 of the Town and Country Planning Act 1990.
- If you want to appeal against your local planning authority's decision then you must do so within 6 months of the date of this notice except where one of the following applies:
  - If this is a decision to refuse planning permission for which an enforcement notice has been served for the same or substantially the same land and development either within 2 years prior to the date on which the application was submitted or before the application was determined, if you want to appeal against your local authority's decision then you must do so within 28 days of the date of this notice; or
  - If this is a decision to refuse planning permission and an enforcement notice is served for the same or substantially the same land and development after the date of this notice, if you want to appeal against your local authority's decision then you must do so within 28 days from the date the enforcement notice is served, unless the effect would be to extend the period beyond the usual time limit for cases not involving an enforcement notice (i.e. 6 months of the date of this notice).
- Appeals must be made using a form which you can get from the Planning Inspectorate at Temple Quay House, 2 The Square, Temple Quay, Bristol, BS1 6PN or online at www.planningportal.gov.uk/pcs.
- The Secretary of State can allow a longer period for giving notice of an appeal, but he will not normally be prepared to use this power unless there are special circumstances which excuse the delay in giving notice of appeal.
- The Secretary of State need not consider an appeal if it seems to him that the local planning authority could not have granted planning permission for the proposed development or could not

have granted it without the conditions they imposed, having regard to the statutory requirements, to the provisions of any development order and to any directions given under a development order.

- In practice, the Secretary of State does not refuse to consider appeals solely because the local planning authority based their decision on a direction given by him.

Purchase notices

- If either the local planning authority or the Secretary of State refuses permission to develop land or grants it subject to conditions, the owner may claim that he can neither put the land to a reasonably beneficial use in its existing state nor render the land capable of a reasonably beneficial use by the carrying out of any development which has been or would be permitted.
- In these circumstances, the owner may serve a purchase notice on the Council in whose area the land is situated. This notice will require the Council to purchase his interest in the land in accordance with the provisions of Part VI of the Town and Country Planning Act

Compensation

In certain circumstances compensation may be claimed from the Local Planning Authority if permission is refused or granted subject to conditions by the Secretary of State on appeal or on reference of the application to him/her.

These circumstances are set out in section 114 and related provisions of the Town and Country Planning Act 1990.

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SCHEDULE 3

THE OWNER'S GENERAL COVENANTS

The Owner hereby covenants with the Council as follows

1 To notify the Council in writing within 5 (five) Working Days of Commencement of Development;

2 Within 10 (ten) Working Days of the Calculation Date

2 1 to confirm to the Council in writing whether the Development was subject to a Pre Sale, and

2.2 to provide the Council with a copy of the Viability Appraisal for possible agreement by the Council,

3 Within 20 (twenty) Working Days of its receipt of the Viability Appraisal the Council shall give written notice to the Owner either -

3 1 Stating that it accepts the Viability Appraisal or

3.2 Correcting or challenging any of the amounts or conclusions included in the Viability Appraisal and giving details of the disputed amounts or conclusions,

4 In the event that the Council shall have served a notice on the Owner pursuant to paragraph 3 2 of this Schedule 3 the Owner and the Council shall use reasonable endeavours to reach agreement in respect of the Viability Appraisal but if the Owner and the Council shall have failed to agree the Viability Appraisal within 20 Working Days of the receipt by the Owner of the notice served by the Council pursuant to Paragraph 3 2 of this Schedule 3, then the matter in dispute shall be referred to the Chartered Surveyor, in accordance with the provisions of Clause 7 with the Chartered Surveyor being requested that he/she should as soon as practicable issue a written determination as to the matter in dispute and a written determination of the correct Viability Appraisal, which both Parties agree will be final and binding upon them;

5 The Viability Appraisal not by way of limitation shall include and confirm.

5.1 the GDV,

5 2 the GDC,

6 Viability Payment

6.1 In the event that the Viability Appraisal is agreed by the Council or determined pursuant to paragraph 4 of this Schedule 3 and the information contained therein shows that in accordance with the provisions of this Agreement a Viability Payment is due then the Owner shall pay to the Council the Viability Payment PROVIDED ALWAYS that this does not exceed the Maximum Contribution and the Viability Assessment Fee in accordance with paragraph 6 2 below,

6.2 The Owner shall pay to the Council the Viability Payment within 20 Working Days of the agreement by the Council of the Viability Appraisal or if applicable within 20 Working Days of the Viability Appraisal being determined pursuant to Paragraph 4 of this Schedule 3

6 3 In the event that the information contained in the Viability Appraisal (as agreed by the Council or determined pursuant to paragraph 4 of this Schedule 3) shows that a Viability Payment is not due then it is agreed by the Council that the Viability Payment shall not be payable although the Viability Assessment Fee shall still be due

6 4 The Owner covenants with the Council that it will indemnify the Council to the full extent of any Viability Payment and related Viability Assessment Fee due that remains unpaid on the expiry of the time limit for payment set out in paragraph 6 2 of this Schedule (the "Outstanding Amount") and will pay the Outstanding Amount to the Council within 20 Working Days of its receipt of a written request from the Council for the Outstanding Amount

SCHEDULE 4

The COUNCIL'S COVENANTS

The Council hereby covenants with the Owner as follows:

1 To use any Viability Payment solely for the following purpose:

1.1 the Open Space Contribution to be used towards improvements to Eccles Recreation Ground and/or improvements to open amenity space within Eccles town centre,

1.2 the Public Realm Contribution to be used towards improvements to nearby Eccles town centre

2 At the written request of the Owner to provide written confirmation of the discharge of the obligations contained in this Agreement when satisfied that such obligations have been performed.

3. That none of the projects or infrastructure items that the Contributions are funding or contributing to have been funded or contributed to by more than four other s 106 Agreements since 6 April 2010 and that the Council has reviewed its records and is satisfied that the Initial Contribution is not in breach of the requirements of Regulation 123 of the Community Infrastructure Levy Regulations 2010

4. In the event that any part of the Contributions paid to the Council has not been spent by the Council within 10 years of the date on which the Contributions are paid to the Council the Council shall on the written request of the Owner repay to the party/person which paid the Contributions such unspent balance (excluding any such sums in respect of which though not yet expended the Council has contractually committed to expend) together with interest on that balance calculated from the date of payment to the Council to the date of repayment

5. The Council shall provide written details of any expenditure incurred by the Council using the Contributions within 20 Working Days of a written request to do so from the party/person who paid those Contributions to the Council or their successors in title

6. To issue the Planning Permission within 2 Working Days of the date hereof

SCHEDULE 5 - VIABILITY REPORT

Former Lyceum Theatre, Church Street

Open Market Gross Development Value (GDV) £

GDV of Pre Sale (PS) Element (Contract to be evidenced) £

Total GDV £

Profit Level – based upon 18% of GDV of Open Market Value	£
Profit Level – based upon 10% of GDC of PS Element	£
All in build cost – [Includes - House Build (Superstructure), Plot Costs (Incl. Substructure), Infrastructure, Overheads and Prelims]	£
Sales and Marketing Costs TBA	£
Agreed planning stage Section 106 commuted sum payment	£0
Finance cost of TBA	£
Interest cost on Deposits. - TBA	£
Agreed Land Value (The Lower of 1). Benchmark Land Value set at Planning Consent Stage of £165,000 or 2). Actual Land Value – to be evidenced)	£
Agreed Stamp Duty @ TBA	
Agreed Site Legal & Agents Fees @ 1% of Land Value	
TOTAL GROSS DEVELOPMENT COSTS (GDC)	
Surplus = GDV - GDC	

NB – Viability Payment Cannot Exceed [£350,969]

THE COMMON SEAL of **THE COUNCIL OF THE CITY OF SALFORD**

was affixed in the presence of:

8104



AUTHORISED SIGNATORY

Signature: .....

Name (in block capitals) ..... JOANNE HARDMAN .....

EXECUTED AS A DEED by
FOREGATE LIMITED

a company incorporated in the Isle of Man,

acting by

who, in accordance with the laws of that territory,

is/are acting under the authority of the company

Foregate Limited

Signature in name of company

.....

.....

Director/Director/Secretary